

SERVICE AGREEMENT

This Agreement is made effective as of 08 April 2026 by and between Scale SD, LLC ("Agency"), with its principal place of business at 10918 Technology PL, San Diego CA 92025, and Emergency Mitigation Services Restoration, Inc. ("Client" or "EMSR"), with its principal place of business at 5345 Timken St STE C La Mesa CA 91942.

1. Services.

Agency agrees to provide the following services to Client:

- a) Fixing and optimizing Client's existing social media pages (Facebook, Instagram, TikTok).
- b) Creating and editing content for posting 4 times per week across platforms, following this strategy: Content posted on Facebook today will be reworded and posted to TikTok the following day, then reworded and posted to Instagram two days later, to maximize reach.
- c) Optimizing ads, including determining most effective days for campaigns and methods. All landing pages must be hosted on Client's website, with Client retaining full ownership and access. Initial landing page development is included as a one time deliverable in the monthly content package. Any subsequent optimization, testing, or modifications to landing pages fall under ad management and strategy and are billed at the hourly rate outlined in section 2c.
- d) Related strategy, planning, and performance monitoring as needed to support the above.

2. Compensation.

a) Content production package is billed at a flat rate of \$2,500 per month, in line with industry standards, itemized as follows:

- 8 audience optimized reels at \$130 each — \$1,040
- 8 graphics at \$75 each — \$600

Total content production — \$1,640

- 2 hours on location filming — \$150
- Social media management and community engagement across 3 platforms — \$300
- SEO optimized captions and copy — \$150
- 2 website landing pages + GoHighLevel Integrations— \$260

Monthly Total — \$2,500

b) Each piece of content includes 2 revisions. Additional major revisions beyond 2 are billed at \$50 per revision. Minor revisions within a reasonable time frame are included at no additional cost. Minor revisions are defined as copy edits, color adjustments, or text changes. Major revisions include reshoots, structural changes, or new creative concepts.

c) Ad management and strategy is billed separately at \$125 per hour with an 8 hour minimum per month to ensure quality assurance. This service is only activated and billed once Client's monthly ad spend reaches a minimum threshold to be agreed upon in writing by both parties prior to activation. The hourly minimum and monthly cap are subject to negotiation at the start of each month based on campaign needs and ad spend levels, and must be confirmed in writing by both parties before work begins for that month.

d) Additional filming beyond the 2 hours included in the monthly package is billed at \$120 per hour. A flat travel and mileage fee of \$35 applies to each additional filming session outside the included monthly visit. Additional filming sessions can be requested by Agency via email and are activated upon Client's written approval in reply, or discussed at the monthly strategy meeting.

e) Agency will provide detailed, itemized monthly invoices. For ad management and strategy, as well as extra filming hours, invoices will include a full time log with date, hours worked, and a description of work completed for each session. Payment is due within 15 days of invoice receipt. Late payments incur 1.5% monthly interest.

f) Included in the monthly package is a monthly performance report and a monthly meeting with Client to review progress, content performance, ad spend to date, and projected return on investment from the system. These meetings ensure full transparency and alignment on strategy going forward.

g) A monthly cap for any hourly ad management work will be agreed upon in advance. This cap can be increased by Agency notifying Client via email and Client accepting the change in reply.

3. Term and Termination.

This Agreement commences on 08 April 2026 and continues month-to-month until terminated by either party with ten (10) days written notice. Upon termination, Agency will provide a pro-rated refund for any prepaid but unused deliverables. Unused deliverables are defined as content not yet produced and approved at the time of termination notice. Client may terminate immediately for material breach by Agency. No penalties apply for termination.

4. Intellectual Property.

All content, creatives, landing pages, and materials created by Agency for Client (including but not limited to posts, videos, graphics, and ad campaigns) are works made for hire and become the sole property of Client upon payment. Client retains full ownership and control of all landing pages, which must be hosted on Client's website.

Agency retains a non-exclusive license to use produced content for portfolio, promotional, and internal analytical optimization purposes. This license remains in effect for the duration of the Agreement and continues thereafter.

Agency retains the right to use aggregated and anonymized campaign data, analytics, and performance metrics derived from services rendered under this Agreement to inform and improve Agency's internal systems, tools, and methodologies. No personally identifiable client information will be shared or disclosed.

Client may use produced content solely for the marketing and promotional purposes of Emergency Mitigation Services Restoration, Inc. Client may not license, sell, transfer, or distribute produced content to any competing businesses, or external marketing agency for use in their own marketing or advertising without the prior written consent of Agency. Any unauthorized distribution or resale of produced content constitutes a material breach of this Agreement.

5. Performance Disclaimer.

Agency will use best efforts but does not guarantee specific results (e.g., lead generation, engagement rates, or revenue). Performance depends on factors outside Agency's control, such as market conditions and Client's input.

6. Client Responsibilities.

Client agrees to provide Agency with timely access to all necessary accounts, login credentials, media files, and filming locations required to fulfill services under this Agreement. Client agrees to review and approve or request revisions to submitted content within 5 business days. Silence beyond 5 business days constitutes approval. Delays caused by Client's failure to provide required access or approvals do not constitute a breach by Agency.

7. Limitation of Liability. Agency's total liability shall not exceed fees paid in the prior month. Neither party is liable for indirect, incidental, or consequential damages. With respect to landing pages hosted on Client's privately managed server, Agency's responsibility is limited solely to the design and delivery of landing page assets. Agency is not liable for any server downtime, data loss, security vulnerabilities, technical failures, or any other issues arising from or related to

Client's hosting environment, server configuration, or third-party infrastructure. Client assumes full responsibility for the maintenance, security, and performance of their private server and any hosted content thereon.

8. Confidentiality.

Both parties agree to keep confidential information private and not use it except for this Agreement.

9. Governing Law.

This Agreement is governed by California law. Disputes will be resolved through binding arbitration in San Diego County, with the prevailing party entitled to recover fees and costs.

10. Entire Agreement.

This is the complete agreement and supersedes prior discussions. Amendments must be in writing and signed by both parties.

Agreed and Accepted:

Scale SD, LLC: _____

Name: Daniel J. Loarca

Title: Owner

Date: 4/9/2026

Emergency Mitigation Services Restoration, Inc.: _____

Name: Joseph Fiasco

Title: Owner

Date: 4/9/2026